HILCHOT PESAH - SHULHAN ARUKH

Mice, Children & the Kavua Principle; Non-Jewish Hames in Your Home

Hilchot Pesah Siman 438–440

Recap of Previous Classes

Class	Simanim	Topics Covered
Class 1	429–430	30 days before Pesach; month of Nisan; Shabbat HaGadol
Class 2	431–433	Time for Bedikat Chametz; the bracha; where to check; candle; various scenarios
Class 3	434–437	After Bedikah — Bitul night and day; missed Bedikah; travelling before Pesach; renting a house
Class 4	**438–440**	**Mouse/child with chametz; kavua principle; kezayit threshold; non-Jew depositing chametz; living with a non-Jew; non-Jewish worker on Pesach**

Siman 438 — A Mouse or Child Entering a Checked Room with Chametz (עכבר שנכנס למקום בדוק וכבר בפיו)

Contains 2 Se'ifim

Se'if 1 — Mouse vs. Child Entering with Bread

Case 1: A Mouse

Shulchan Aruch: A house has been checked. A mouse is seen running in with a piece of bread in its mouth. You follow and find crumbs — even crumbs that together equal the full amount of the original piece.

Ruling: You **cannot** assume the crumbs are from that bread. You must **search the entire house again**.

Reason (Gemara): It is not the nature of a mouse to create crumbs — mice eat, they don't scatter. Therefore, the crumbs you found must have been pre-existing (missed during the original Bedikah), and the mouse's bread is still somewhere in the house.

Case 2: A Child

Shulchan Aruch: Same scenario, but a **child** entered with bread instead of a mouse.

Ruling: If you find **crumbs** — you **do not** need to re-search.

Reason: It **is** the nature of a child to create crumbs while eating. Therefore, we can presume the crumbs are from the bread the child brought in, and the child ate the rest.

What If There Are No Crumbs (Child)?

- You **must search that room again**.
- There is a vadai (certainty) that chametz entered the room.
- You cannot say "maybe the child ate it" — אין ספק מוציא מידי ודאי — a doubt cannot override a certainty.
- **Mishnah Berurah:** Only the room the child entered needs re-checking (not the whole house) — since bedikat chametz is de-rabbanan and bitul has been done, we can be lenient.

What If the Crumbs Don't Equal the Full Piece?

- **One opinion (brought by Shulchan Aruch):** If the crumbs don't add up to the original piece, you must re-check.
- **Main halacha (which we follow):** Even if the crumbs are only a partial amount, we assume the child ate some and crumbed the rest. No need to re-check.

Age of the "Child"

- This entire discussion refers to a child **without da'at** — too young to communicate meaningfully (roughly ages 1–3).
- Once a child can respond and explain ("I ate it" / "I threw it in the bin"), the child is **believed**, however young they are.
- If the child can communicate — just ask them. Problem solved.

Se'if 2 — A Kezayit of Chametz in an Unreachable Place

Shulchan Aruch: A **kezayit** of chametz is found on top of a high beam (e.g., thrown up during a simcha). Even though it's hard to reach, you are **obligated to get a ladder and retrieve it**.

Reason: During Pesach, it may fall, and you might come to eat it or benefit from it.

Chametz in a pit: You do **not** need to retrieve it — it won't come out on its own. Bitul in your mind suffices.

Two Critical Deductions

1. No obligation to search improbable places

- The halacha says you must retrieve chametz on the beam **because you know it's there**.
- There is **no obligation** to climb a ladder and search the top of a chandelier "just in case."
- You only need to retrieve chametz from hard-to-reach places when you **know** or have **reasonable grounds to believe** it is there.

2. The threshold is a kezayit

- The Shulchan Aruch specifies **kezayit** — implying that less than a kezayit does not trigger this obligation.
- **Mishnah Berurah:** Brings two opinions:
- **Shulchan Aruch's view:** Bedikat chametz obligation applies only to a kezayit or more.
- **Other poskim:** Even less than a kezayit requires searching.

- **Mishnah Berurah's leaning (in Sha'ar HaTziyun):** Favours the lenient view — the obligation was only for a kezayit.

What Is a Kezayit?

- Commonly cited as **27 grams** — but this is a stringent modern estimate.
- **Likely the true kezayit is much smaller** — general consensus of poskim places it between **15–20 grams**. Some opinions say as low as 3 grams.
- **Cannot rely on the 27g figure to be lenient** (i.e., you can't say "it's less than 27g so I don't need to search").
- **Key practical takeaway:** You are searching for **substantial pieces** of chametz, not tiny crumbs. There is no obligation to hunt for crumbs — the Shulchan Aruch does not require that.

What If It's Dangerous or Impossible to Retrieve?

Scenario	Obligation
Dangerous to climb (shaky ladder, unsafe height)	**No obligation** — pikuach nefesh; rely on bitul
No ladder available, found out hours before Pesach	**Rely on bitul** — no other option
Can hire a builder/professional to retrieve it	**Must do so** — it's a chiyuv de-rabbanan like any other; spend money to fulfil it
Physically impossible to access	**Rely on bitul**

Siman 439 — Chametz and Matzah Confusion; the Principle of Kavua (דין מי שבדק ולא מצא משפט ככרות שנתחלפו)

Selected Se'ifim — key Talmudic principles

Se'if 1 — Nine Piles of Matzah and One of Chametz (The Kavua Principle)

Shulchan Aruch (from the Gemara): Nine piles of matzah and one pile of chametz. A mouse takes something — we don't know from which pile. He runs into a checked house.

Question: Since there's a 9:1 majority of matzah, can we follow the majority (rov) and assume the mouse took matzah — and therefore no need to re-check?

Answer: No. You must do bedikat chametz again.

The Talmudic Principle: Kavua (קבוע)

Kol kavua ke-mechtzah al mechtzah dami — Anything that is **stationary/fixed** (kavua) at the time the doubt arises is treated as **50-50**, regardless of the actual ratio.

Scenario	Principle	Result
Doubt arises at the **stationary source** (e.g., mouse takes from the fixed piles)	**Kavua** — treated as 50-50	Cannot follow majority; must re-check
Doubt arises **after separation** from the source (e.g., a piece was already pushed away, then the mouse took it)	**Kol de-parish me-ruba parish** — what separates is assumed to come from the majority	Can follow majority; no need to re-check

The Classic Gemara Example (Ketubot / Chulin)

- **Nine kosher butcher shops and one non-kosher**, in a row.
- **Meat found outside** the shops (already separated): Kosher — because kol de-parish me-ruba parish.
- **Person walked into one of the shops** and bought meat (doubt at the stationary source): Treated as 50-50 — the meat is a safek, despite the 9:1 ratio.

Application to Our Case

- If someone **pushed one piece away** from the nine-and-one piles before the mouse came, and the mouse then took that separated piece → **Fine** — follow the majority; no need to re-check.
- If the mouse took **directly from the stationary piles** → **Kavua** — must re-check.

Note: This principle has enormous ramifications throughout halacha — lineage (yuchsin), kashrus, and many other areas.

Se'if 4 — Chametz Found in a Different Location

Shulchan Aruch: If you left chametz in one specific place, and then find chametz in a **different place**:

- You **must search the room again**.
- **Reason:** The chametz found elsewhere may be a different piece entirely. The original chametz you left is unaccounted for — it may have been moved by a mouse or child.
- **Exception:** If you can identify that it is the **same chametz** (you recognise it), then it's fine.

Siman 440 — A Non-Jew Who Deposits Chametz in a Jewish Person's Home (דין חמץ של נכרי שהופקד אצל ישראל)

Contains 4 Se'ifim

Background: The Torah's Two Pesukim

The Gemara identifies an apparent contradiction between two pesukim:

"לא יראה לך" — It shall not be seen **to you**" → Implies only **your** chametz is problematic; a non-Jew's chametz in your house should be fine.

"לא ימצא" — It shall not be **found**" → Implies **any** chametz is a problem, even if it's not yours.

Resolution (Gemara): It depends on whether you have **accepted responsibility** (achrayut) for the chametz. If you have responsibility, you have an **association** (connection) to it — it's as if it is partly "yours" for this purpose.

Se'if 1 — Levels of Responsibility

Shulchan Aruch — Two Opinions:

Opinion 1 (Stam / Rambam — Main Halacha):

Only if you accepted responsibility for **theft and loss** (gneva va-aveida) — a higher level of liability — are you obligated to remove the chametz.

- If you only accepted responsibility for **negligence** (peshia) — a lower level — you are **not** obligated.

Opinion 2 (Rosh):

Even responsibility for **negligence alone** creates sufficient association — you must remove it.

Halacha: We follow the **first opinion** (stam of the Shulchan Aruch). Only a higher level of responsibility (theft and loss) creates the obligation.

If No Responsibility Was Accepted at All

- The chametz may remain in your house — **no problem whatsoever**.
- You have no association to it; it is entirely the non-Jew's.
- But you must still make a **partition** (see Se'if 2) so you don't accidentally eat it.

Special Case: A Non-Jew You're Afraid Of

Shulchan Aruch: Even if you didn't officially accept responsibility, if the non-Jew is someone powerful/threatening who would **force you to pay** if the chametz is damaged, there is an association — because you effectively care about it.

- Some disagree with this stringency.

What If You Must Get Rid of It?

- **First option:** Return it to the non-Jew (put it back in his house/give it back).
- **If you can't return it:** You must **destroy it**.
- **Mishnah Berurah:** There is a possibility of selling it — though some say this is difficult since it's not truly "yours." But if no other option exists, you could transfer it to someone else.

Se'if 2 — No Responsibility Accepted: The Mechitzah Requirement

Shulchan Aruch: If a non-Jew deposited chametz in your house and you accepted **no responsibility**, the chametz may stay. However, you must create a **mechitzah** (partition) of **10 tefachim** (~80 cm) as a reminder not to eat it.

Key Details About the Mechitzah

Point	Detail
Height	10 tefachim (~80 cm)
Type	A proper partition — not just covering with a vessel (kli)
Why not just cover it?	Covering (kofeh kli) is only for chametz found during Chag itself when you can't build a mechitzah
Before Pesach	You can and must build a proper mechitzah
During Chag (non-Jew deposited chametz on Pesach itself)	Cover it with a kli; on Chol HaMoed, build a proper mechitzah

Modern Application: Sale of Chametz

- When we sell our chametz, the **wall of the cupboard** acts as the mechitzah.
- We also place a **sign** as an additional reminder.
- If sold chametz were lying around the house (not in a cupboard), you would need to erect a mechitzah around it.

Biur Halacha: Does the Mechitzah Apply to All Chametz?

- **Strong argument:** The mechitzah is only needed for **ready-to-eat chametz** (bread, baked goods) — items you might impulsively eat.
- **Raw ingredients** (flour, yeast) don't need a mechitzah — by the time you'd prepare them, you'd remember it's Pesach.
- **In practice:** Make the mechitzah for everything anyway.

Interesting Point: Pat Akum (Non-Jewish Bread)

- There is a halacha to prefer bread baked by a Jew (pat Yisrael) over non-Jewish bread (pat akum).
- **Question:** If someone is strict about pat Yisrael all year, can they skip the mechitzah — since they'd never eat the non-Jew's bread anyway?
- **Answer: No.** Since me'ikar hadin one is permitted to eat pat akum (in certain conditions), the mechitzah is still required.

Rama: Non-Jew Deposits Against Your Will

- If a non-Jew puts chametz in your house **without asking** — same rules apply.
- Before Pesach: Make a mechitzah.
- During Chag: Cover it; build mechitzah on Chol HaMoed.

Se'if 3 — A Non-Jewish Worker Entering Your House with Chametz

Shulchan Aruch: A non-Jewish person enters your house carrying his own chametz (e.g., a plumber/builder brings his sandwiches).

The Rules

Aspect	Ruling
Can he bring chametz into your house?	**Yes** — you don't have to ask him to leave it outside
Can you see his chametz?	**Yes** — "lo yera'eh" means chametz belonging to **you** shouldn't be seen; seeing someone else's chametz is fine
Does he need a mechitzah?	**No** — he's holding/carrying it; it's his food with him. Mechitzah is only for deposited/left chametz
Can he eat on your table?	**Yes** — as long as you are **not eating at the same time** and you **clean the table afterwards**
Can you eat together at the same table?	**No** — forbidden, even with a separation/sign between you

Why Can't You Eat Together? (Meat-and-Milk Comparison)

General halacha (basar be-chalav):

- Two Jews eating at the same table — one dairy, one meat — must create a **siman** (sign/recognition) between them, but may eat together.
- A Jew eating with a non-Jew eating non-kosher food — **fine without any siman**, because there's no temptation to swap (it's not kosher).

On Pesach — stricter:

- The prohibition of chametz on Pesach is **be-mashehu** — even the tiniest crumb is forbidden (unlike other prohibitions that require a minimum amount).
- Therefore, even eating at the same table with proper separation is forbidden — a crumb could mix into your food.
- This applies even to a non-Jew's chametz, which you would never otherwise eat.

Practical Summary for Non-Jewish Workers

- He may enter with his chametz.
- He may eat in your house — on your table, at a different time from you.
- You must clean the table thoroughly afterwards.
- He may **not** eat at the same table at the same time as you.
- No mechitzah required for chametz he carries (as opposed to chametz he leaves/deposits).

Se'if 4 — A Jew Depositing Chametz with Another Jew

Shulchan Aruch: If a **Jewish person** deposited chametz with another Jewish person, even if the depositee accepted responsibility — **both** Jews can be liable for the prohibition.

- The depositor: It's his chametz.
- The depositee: He accepted responsibility, creating an association.
- Unless they sell it, destroy it, or otherwise deal with it — both are in violation.

Summary of Key Practical Points

Siman	Key Takeaways
438:1	Mouse with bread + crumbs found = must re-search (mice don't crumb). Child with bread + crumbs found = fine (children crumb). No crumbs from child = must search that room. Child with da'at = just ask them.
438:2	Kezayit on a high beam = must retrieve (ladder). In a pit = bitul suffices. No obligation to search improbable places unless you know chametz is there. Bedikat chametz obligation is for a kezayit — not crumbs.
439:1	Kavua principle: doubt at stationary source = 50-50 regardless of majority. Doubt after separation = follow majority (kol de-parish).
439:4	Chametz found in a different place than where you left it = must re-search (may be a different piece).
440:1	Non-Jew deposits chametz: if you accepted responsibility for theft/loss = must remove. Negligence only = no obligation (main halacha). No responsibility = fine, but need mechitzah.
440:2	No responsibility accepted: chametz may stay but must have a 10-tefachim mechitzah. Modern application: cupboard wall + sign when selling chametz.
440:3	Non-Jewish worker may bring chametz into your house and eat on your table (not at the same time as you). Clean up after. No mechitzah needed for carried chametz.
440:4	Jew depositing chametz with another Jew: both potentially liable.

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